



KWS General Terms

KWS General Terms

Last updated: 13 May 2026

Kids Web Services have been developed to enable you to create safer digital experiences for your younger audiences. These terms and conditions (**KWS General Terms**), together with the applicable KWS Service Specific Terms and any addenda, additional documentation, policies or terms incorporated into them by reference and (where applicable) any Order Form signed by you and us (collectively the **KWS Developer Terms**) apply to your access and use of the KWS Services and create a binding contract between you and us. We are Kids Web Services Ltd, a private limited company incorporated in England (Company Number 13351982) with our registered office at C/O Shepherd And Wedderburn LLP, 1-6 Lombard Street, London, England, EC3V 9AA, United Kingdom (**KWS / we / us**). Our VAT number is GB 452 1755 02.

Please read the KWS Developer Terms carefully. The KWS Developer Terms are a legal agreement that explains your rights and obligations relating to your use of the KWS Services. You agree to the KWS Developer Terms when you access or use the KWS Services or accept the KWS Developer Terms (such as by clicking an icon online or signing an Order Form), whichever happens first. If you access or use the KWS Services on behalf of an entity, you are agreeing to the KWS Developer Terms on behalf of that entity, and you represent and warrant that you have authority to do so (and for clarity, all other references to **you, your** or similar in the KWS Developer Terms refer to that entity). If you don't agree to the KWS Developer Terms, you cannot use or access the KWS Services.

Certain words or phrases are defined to have specific meanings when used in the KWS Developer Terms. Those words and phrases are defined below in clause 13.

The KWS Services are intended for use for commercial purposes only. To enter into these KWS Developer Terms and use the KWS Services, you must be, and by using the KWS Services you represent that you are, at least 18 and an adult of the legal age of majority in your country of residence.

1. YOUR DEVELOPER PORTAL ACCOUNT

1.1. To use the KWS Services, you must first create an account in the Developer Portal (**Account**). You must provide accurate, complete and at all times up to date information for your Account. We may need to use this information to contact you.

1.2. You must access the KWS Services through your own Account only or as otherwise expressly authorised by

KWS and you may not share or allow others to use your Account. Use of your Account is subject to the [Epic Games Terms of Service](#). You are solely responsible for any activity on your Account and for maintaining the confidentiality and security of your login details. Neither we nor Epic are liable for any acts or omissions by you or anyone else in connection with your Account. You must immediately notify us if you know or have any reason to suspect that your Account or login details have been stolen, misappropriated or otherwise compromised or in case of any actual or suspected unauthorised use of your Account.

1.3. Your and your Authorised Users' use of the Developer Portal is subject to the [Epic Games Privacy Policy](#).

2. THE KWS SERVICES

2.1. KWS will use commercially reasonable efforts to make available and provide the KWS Services to substantially the same level of quality that KWS provides with respect to the games and products of the [Epic Games](#) family of companies (to which KWS belongs). Our obligations under this clause are conditioned upon (a) your ongoing, good-faith cooperation to perform all tasks necessary, or reasonably requested by KWS, to integrate the KWS Services and ensure that your App is compatible with the KWS Services, and (b) your compliance with the KWS Developer Terms.

2.2. From time to time, we may offer you the opportunity to use and test certain KWS products or services prior to their commercial release (**Preview Services**). If you use any Preview Services, the KWS Preview Terms apply to and govern those Preview Services.

2.3. Your and your Authorised Users' use of the KWS Services is subject to the [KWS Partner Privacy Policy](#).

3. UPDATES AND CHANGES

3.1. KWS may release new versions of the API and/or Web Interface from time to time and make them available via the Developer Portal. KWS will use commercially reasonable efforts to ensure each version of the API and/or Web Interface is compatible with Apps that integrate the prior version of the API and/or Web Interface. You will be expected to update your App to use a new version of the API and/or Web Interface within 3 years of its release. Beyond this time period, KWS intends to use commercially reasonable efforts to ensure continued backward compatibility of any KWS Service, but KWS does not have any obligation to support any prior version of the API and/or Web Interface for more than 3 years from the time it has released a new version of the API and/or Web Interface.

3.2. KWS may discontinue support for any KWS Service upon 3 years' notice to you.

3.3. KWS constantly seeks to improve the KWS Services. Subject at all times to clause 2.1 (our commercially reasonable efforts obligation to make available and provide the KWS Services to substantially the same level of quality that KWS provides with respect to the games and products of our [Epic Games](#) family of companies), we may change, remove or add features and functionalities of a KWS Service at any time without notice (notwithstanding clause 3.1), however if we make changes which require you to undertake additional development work, we will create a new version of the API and/or Web Interface in accordance with clause 3.1.

3.4. Notwithstanding clauses 3.1, 3.2 and 3.3, we may terminate a KWS Service, remove features and

functionalities of a KWS Service and/or terminate or discontinue support for any version of the API and/or Web Interface at any time to comply with legal or regulatory requirements or guidelines, in which case KWS will provide reasonable notice to you (up to 30 days) save in urgent situations.

3.5. We may update the KWS Developer Terms at any time in our discretion by providing notice to you or by providing you with digital access to the amended KWS Developer Terms when you access the Developer Portal, use new versions of the API and/or Web Interface or access new KWS Services. You are not required to accept the updated KWS Developer Terms unless the KWS Developer Terms are updated to comply with legal or regulatory requirements or guidelines, in which case KWS will provide reasonable notice to you (up to 30 days), save in urgent situations. Your continued use of or access to the KWS Services after the effective date of any such amendment constitutes your agreement to the KWS Developer Terms as amended. In order to use new versions of the API and/or Web Interface or access new KWS Services, you must accept the amended KWS Developer Terms.

4. YOUR RESPONSIBILITIES

4.1. You are responsible for your (and your Authorised Users' or anyone using your Account) use of the KWS Services and compliance with Applicable Laws (both with respect to access and use of the KWS Services as well as with respect to any Apps in connection with which you use the KWS Services).

4.2. You:

4.2.1. agree to comply with technical specifications provided by KWS outlining how to integrate and use the KWS Services. Technical documentation outlining how to integrate and use the KWS Services, including any technical restrictions on their use, is available on the KWS documentation pages available via the Developer Portal;

4.2.2. are solely responsible for procuring and maintaining any network connections and telecommunications links from your systems in order to access and use the KWS Services; and

4.2.3. shall not, and shall not permit any third party to (a) use the KWS Services or KWS Materials (i) to spread viruses or harmful code (ii) to do anything that could disable, overburden or impair the proper working or appearance of the KWS Services or any third party's access to the KWS Services (iii) in an unreasonable or excessive manner given the scope, nature, and content of your App, for example to conduct a DDOS attack on the KWS Services or (iv) in any manner that violates any Applicable Laws, is illegal, causes damage or injury to a person or property or interferes with any third party's access to any of the KWS Services or KWS Materials, intentionally or otherwise; (b) breach, bypass or compromise any security or authentication measures or technical restrictions on use, access, storage, or any function of the KWS Services or KWS Materials; (c) access restricted areas of the KWS Services or KWS Materials without our permission; (d) use the KWS Services and KWS Materials other than in connection with your App; (e) create or access accounts for, or collect data from, the KWS Services using automated means (without our permission) or access data you don't have permission to access; (f) use the KWS Services to publish content or material that is unlawful, harmful, threatening, defamatory, obscene,

infringing, harassing, discriminatory, unsuitable for children or that facilitates illegal activity; (g) use the KWS Services in connection with any App that is unlawful, harmful, threatening, defamatory, obscene, infringing, harassing, discriminatory, unsuitable for children or that facilitates illegal activity (save that you shall not be in breach of this sub-clause 4.2.3(g) as a result of user-generated content or user communications posted or included in your App contrary to your App's terms of service or other guidelines, provided that you operate and adhere to robust filtering, blocking, reporting and response mechanisms with respect to any such content and communications contrary to the aforementioned prohibitions); (h) infringe any Intellectual Property Rights; (i) copy, modify, duplicate, create derivative works from, frame, mirror, republish, download, display, transmit, or distribute all or any portion of the KWS Services or KWS Materials in any form or media or by any means; (j) remove or destroy any copyright notices, trade marks, or other proprietary or confidential legends or markings placed upon or contained within or on the KWS Services or other materials provided by KWS; (k) reverse compile, disassemble, reverse engineer or otherwise reduce to human-perceivable form all or any part of the KWS Services or any KWS Materials or algorithms; (l) access any of the KWS Services or KWS Materials to build a competing product or service; or (m) sell, transfer or sublicense the KWS Services or KWS Materials to anyone or otherwise exploit the KWS Services or KWS Materials or any aspect of them.

4.3. We may immediately remove content stored or maintained through the KWS Services, disable access to, or suspend the KWS Services or your Account to comply with legal or regulatory requirements or guidelines or if you are in breach of this clause 4 or any KWS Service Specific Terms. KWS intends to be transparent in its management and enforcement of the restrictions set out in clause 4.2.3 and this clause 4.3. KWS may provide additional guidance on these issues from time to time through an Acceptable Use Policy, which shall be made available through the Developer Portal.

4.4. You agree to comply with all Applicable Laws in connection with your use of the KWS Services and, in particular, Data Protection Laws and that you will not use the KWS Services to collect or process personal data in breach of Data Protection Laws. You shall, in particular, ensure that:

4.4.1. you satisfy yourself that consents obtained from and managed by parents or guardians through or using the KWS Services comply with Data Protection Laws;

4.4.2. any App on or in connection with which you use the KWS Services have a prominent, easily accessible and clearly legible privacy notice that is compliant with Data Protection Laws and the KWS Developer Terms. You agree that you will provide us with an accurate link to your publicly available privacy notice for inclusion in the KWS Services' end-user interface; and

4.4.3. you comply with all notice and consent requirements and have a valid legal basis (such as consent) under Data Protection Laws for any collection or processing of personal data in connection with your use of the KWS Services.

4.5. You shall promptly (and within no more than 7 days) notify KWS if you are subject to any litigation, claim, allegation, complaint, investigation, inquiry, action or similar in which it is alleged (directly or indirectly) that the KWS Services, or your access or use of the KWS Services, does not comply with Applicable Laws, including

Data Protection Laws. You shall forward us the relevant correspondence and documents and, if applicable, cooperate with us in responding to the same. You agree to provide information and other materials related to your use of the KWS Services as reasonably requested by us to investigate the source of any problem with the KWS Services or to verify your compliance with the KWS Developer Terms.

5. INTELLECTUAL PROPERTY RIGHTS

5.1. KWS is the owner or the licensee of all Intellectual Property Rights in the KWS Services, the KWS Materials and in the KWS Data (including, without limitation, in the Account Data and the AgeGraph Data) and reserves all rights, title and interest in and to them. You specifically acknowledge that the AgeGraph Data (including if obtained via the App or you) is incorporated in the AgeGraph which is used to provide KWS Services to you and our other customers.

5.2. KWS grants you during the Term a terminable, non-exclusive, non-transferable, non-sublicensable license for you and your Authorised Users to access and use the KWS Materials and KWS Services and integrate the App with the KWS Platform, in each case, solely by using the API and/or Web Interface and in accordance with and subject to the KWS Developer Terms and your compliance with the KWS Developer Terms, solely for the purposes for which the KWS Materials and KWS Services are made available by us. All rights granted to you under the KWS Developer Terms are granted by express license only and not by sale, and all of those rights are limited by the KWS Developer Terms. No license or other rights will be created hereunder by implication, estoppel, or otherwise. For the avoidance of doubt, you have no right to access or be provided with any object code or source code version of any software underlying any KWS Service. You agree not to remove or destroy any copyright notices, KWS Trade Marks, or other proprietary or confidential markings placed upon or contained within or on any of the KWS Services or the KWS Materials.

5.3. We do not own your App or Content. You and your licensors retain all Intellectual Property Rights in and to your App (excluding any KWS Services and KWS Materials integrated in it) and your Content. During the Term, you grant KWS a worldwide, non-exclusive, irrevocable, non-terminable, transferable, sub-licensable, royalty-free, fully paid up licence to use, distribute, modify, run, copy, and publicly display your Content solely to provide the KWS Services to you.

5.4. KWS welcomes your feedback, bug reports, feature requests, ideas or suggestions (collectively, **Feedback**). You agree that we don't have to keep your Feedback confidential (even if you tell us it is) provided we don't identify you as the source of it, and that we can use your Feedback without any restriction or obligation to you, even after the Term ends. You grant KWS a worldwide, non-exclusive, perpetual, irrevocable, non-terminable, transferable, sub-licensable, royalty-free, fully paid up licence to use and otherwise exploit the Feedback for any purpose.

6. DATA PRIVACY

The Data Processing Addendum located [here](#) applies between you and us in accordance with the KWS Service Specific Terms.

7. KWS SERVICES ARE FREE AND PROVIDED “AS IS”

You are solely responsible for ensuring that the KWS Services are suitable for use by you. The KWS Services and KWS Materials are provided “**as is**” and “**as available**”, “**with all faults**” and without warranty of any kind. To the fullest extent permitted by Applicable Laws, KWS, its licensors, and its and their Affiliates disclaim all warranties, conditions, common law duties, and representations (express, implied, oral, and written) about the KWS Services or KWS Materials, including without limitation any warranties of merchantability, fitness for a particular purpose, quality, design, title, system integration, non-infringement, non-interference with your enjoyment or that the KWS Services and KWS Materials will be available, accessible, uninterrupted, timely, secure, free from bugs, viruses or other harmful components, accurate, complete or error free or that any defects or errors can or will be corrected. You use the KWS Services and KWS Materials at your own risk. You rely upon any advice or information, whether oral or written (such as in FAQs, blogs, manuals or guidance), obtained by you from KWS or its Affiliates at your own risk (and nothing said or published by KWS or its Affiliates constitutes legal, compliance or similar advice) and we and our Affiliates are not responsible for any damage or loss you may suffer from reliance on such.

8. WARRANTIES AND INDEMNITY

8.1. You represent and warrant that:

8.1.1. you have the right, power, and authority to enter into the KWS Developer Terms and to fully perform your obligations hereunder; and

8.1.2. all materials and information you submit to KWS and its Affiliates in connection with your use of the KWS Services are truthful, accurate, and do not infringe or violate the Intellectual Property Rights of any third party.

8.2. You agree to defend, indemnify, and hold harmless KWS, its licensors and its and their Affiliates from and against any Liabilities suffered, incurred or paid out by KWS, its Affiliates and/or licensors arising out of or in connection with (a) your breach or alleged breach of the KWS Developer Terms; (b) the provision or making available by you of any App or Content that is alleged to infringe the Intellectual Property Rights or other proprietary or personal rights of any third party; (c) the breach of Applicable Laws by you or, as a result of your or your Authorised Users’ acts or omissions, by us; and (d) your failure to comply with Data Protection Laws (including a failure to have any necessary consents or legal basis or to provide required information to data subjects), including any breach by us of Data Protection Laws resulting from your failure.

8.3. If you are prohibited by Applicable Laws from entering into the obligations in this clause 8, then you assume, to the extent permitted by Applicable Laws, all liability for all Liabilities that are the stated subject matter of those obligations.

9. LIMITATION OF LIABILITY

9.1. Nothing in the KWS Developer Terms excludes or in any way limits either party’s liability for fraud, death or personal injury caused by its negligence, or any other liability to the extent such liability may not be excluded or limited as a matter of Applicable Laws.

9.2. Subject to clause 9.1, you agree that to the fullest extent permitted by Applicable Laws, in no event will

KWS, its licensors, nor its or their Affiliates be liable (whether in contract, tort (including negligence), breach of statutory duty or otherwise) for:

9.2.1. any indirect, special, incidental, exemplary, punitive or consequential damages;

9.2.2. any loss of profits or revenue;

9.2.3. any losses related to unavailability, degradation, loss, corruption, theft, unauthorised access or, unauthorised alteration of, any content, information or data (including personal data);

9.2.4. any loss of goodwill, harm to reputation or other intangible losses; and/or

9.2.5. any fines, action, sanction, investigation or inquiry by any regulatory, competent or supervisory authority.

9.3. Subject to clause 9.1, you agree that to the fullest extent permitted by Applicable Laws, in no event shall the aggregate liability of KWS, its licensors, and its or their Affiliates to you (whether in contract, tort (including negligence), breach of statutory duty or otherwise) for all loss or damage suffered or incurred by you or your Authorised Users arising out of or in connection with the KWS Services and KWS Materials exceed one hundred pounds sterling (£100).

10. TERM AND TERMINATION

10.1. The contract created by the KWS Developer Terms remains in effect until terminated by either you or KWS (**Term**). KWS may suspend or terminate your Account and the contract created by the KWS Developer Terms or any KWS Service Specific Terms (a) if you materially breach any of your obligations in the KWS Developer Terms and fail to cure such breach within 30 days of notice to you; (b) immediately for cause if you breach any of your obligations under clauses 4 (Your Responsibilities), 5 (Intellectual Property Rights), 6 (Data Privacy), 8 (Warranties and Indemnity) 11 (Confidentiality) or any KWS Service Specific Terms (c) to comply with legal or regulatory requirements or guidelines; or (d) upon 3 years' notice to you.

10.2. If you do not use or access a particular KWS Service for a period of one year or longer, upon 30 days' notice, we may terminate your access to that KWS Service and delete any data relating to such KWS Service that is stored or maintained through the KWS Service.

10.3. You may terminate the contract created by these KWS Developer Terms or any KWS Service Specific Terms at any time.

10.4. On termination of the contract created by the KWS Developer Terms or any KWS Service Specific Terms, all rights granted to you under the KWS Developer Terms or any KWS Service Specific Terms immediately end. You shall immediately stop using the applicable KWS Services and KWS Materials and destroy all tangible copies of the KWS Materials, together with all reproduction and modifications thereof, and if requested by KWS, provide a written certification that you have complied with all of your obligations under this clause 10.4.

10.5. KWS and its Affiliates shall not be liable to you for damages of any kind, including direct, indirect, special, incidental, exemplary, punitive or consequential damages on account of termination of the KWS Developer

Terms or any KWS Service Specific Terms for any reason whatsoever, even if KWS has been advised of the possibility of such damages.

10.6. Any provision of the KWS Developer Terms that expressly or by its nature is intended to survive termination (including clauses 1.2, 4.1, 4.4, 4.5, 5.1, 5.3, 5.4, 6, 7, 8, 9, 10.4, 10.5, 11, 12 and 13) will survive the termination of the KWS Developer Terms.

11. CONFIDENTIALITY

You agree to keep confidential and to only use our confidential information for access and use of the KWS Services under the KWS Developer Terms.

12. GENERAL

12.1. You agree not to bring or participate as a claimant in a class or representative action, including but not limited to actions which are the subject of Group Litigation Orders, related to the KWS Services, the KWS Materials or the KWS Developer Terms. You also agree not to seek to combine any action related to the KWS Services, KWS Materials or the KWS Developer Terms with any other action without our consent and the consent of all parties to the other actions. Nothing in this clause 12.1 shall prevent KWS from applying for any form of multi-party case management order, or prevent you from participating in proceedings where such an order is sought by KWS.

12.2. Where the KWS Developer Terms provide for notice from KWS, including written notice, KWS may provide notice to you via email (to any email address provided in your Account or Order Form). You must keep your contact information current, including name, business name, and email. KWS' notices are deemed to have been received if sent by email at the time of transmission.

12.3. You shall not assign or transfer any of your rights and obligations under the KWS Developer Terms (in whole or in part) without KWS' prior written consent. We may transfer or assign the KWS Developer Terms (or some or all of our rights and obligations under them) without restriction.

12.4. A waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent default. A delay or failure to exercise, or the single or partial exercise of, any right or remedy does not waive that or any other right or remedy or prevent or restrict the further exercise of that or any other right or remedy.

12.5. If a court finds part of the KWS Developer Terms to be invalid, the rest of the KWS Developer Terms will continue to apply with the minimum changes required to remove the invalid part.

12.6. The KWS Developer Terms constitute the entire agreement between you and KWS regarding the KWS Services, and supersede and replace any other prior or contemporaneous agreements with respect to the KWS Services. You agree that you have not relied upon, and have no remedies in respect of, any term, condition, statement, warranty or representation except those expressly set out in the KWS Developer Terms. The KWS Developer Terms create no third party beneficiary rights, meaning no third party has any right or standing to claim benefit or bring an action to enforce the KWS Developer Terms (including under the Contracts (Rights of

Third Parties) Act 1999).

12.7. No agency, partnership, joint venture, or employment relationship is created as a result of the KWS Developer Terms and neither party has any authority of any kind to bind the other in any respect.

12.8. We are not in breach of the KWS Developer Terms or liable to you if there is any total or partial failure of or delay in performance of the KWS Services or KWS Materials resulting from any act, circumstance, event or matter beyond our reasonable control. This may include where such results from any act of God, fire, epidemic, pandemic, act of government or state or regulation, war, civil commotion, terrorism, insurrection, inability to communicate with third parties for whatever reason, failure of any computer dealing or necessary system, failure or delay in transmission of communications, power failure, failure of any internet service provider, denial of service or similar attacks, strike, industrial action or lock-out or any other reason beyond our reasonable control.

12.9. In the KWS Developer Terms, unless otherwise stated, the singular includes the plural and vice versa; any words following the terms including, include, in particular, for example or any similar expression shall be construed as illustrative and do not limit the sense of the words preceding those terms; and a reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision, and consolidations, amendments, re-enactments or replacements of any of them. Any reference in the KWS Developer Terms (including any supplemental terms and any addenda, additional documentation, policies or terms incorporated into them) to any documents, policies or similar is to those as updated by KWS from time to time. Clause headings shall not affect the interpretation of the KWS Developer Terms.

12.10. The API and/or Web Interface and related documentation are “Commercial Items” (as defined at 48 C.F.R. § 2.101 of the United States Code of Federal Regulations), consisting of “Commercial Computer Software” and “Commercial Computer Software Documentation” (as used in 48 C.F.R. § 12.212 or 48 C.F.R. § 227.7202, as applicable). Any license of the API and/or Web Interface and related documentation to U.S. Government end users is only as Commercial Items and with only those rights as are granted to other licensees under these KWS Developer Terms.

12.11. The existence, formation, interpretation, operation and termination of the KWS Developer Terms and all matters or disputes (whether contractual or non-contractual) arising out of or in connection with the KWS Developer Terms or their subject matter is governed by and interpreted in accordance with the laws of England and Wales. The parties irrevocably and unconditionally agree that the courts of London, England have exclusive jurisdiction to settle all matters or disputes (whether contractual or non-contractual) arising out of or in connection with the KWS Developer Terms or its subject matter.

12.12. These KWS Developer Terms were originally written in English. You waive any right you may have under the law of your country to have the KWS Developer Terms written in a language other than English.

13. DEFINITIONS

Account means your account on the Developer Portal, as mentioned in clause 1.

Account Data means any data or information that is populated in your Account or otherwise provided by you

and/or processed by KWS in connection with or as part of providing the KWS Services, in each case in respect of you or your Authorised Users.

Affiliate means in relation to a party, any entity that directly or indirectly controls, is controlled by, or is under common control with that party from time to time.

AgeGraph means a database of AgeGraph Data collected in connection with the provision of, and used to provide, products and services to you and our other customers to determine if a parent, guardian or end-user has previously been verified, so that their data need not be collected again.

AgeGraph Data means, in respect of a parent, guardian or end-user, their hashed email address, the method, status and the timestamp of the first verification and the timestamp of subsequent verifications using the AgeGraph, the country in which their device is located, the Apps in connection with which the individual verifies their age, a KWS generated transaction ID for each verification and any transaction IDs provided to us by our verification partners, such as Stripe, and any other AgeGraph data as may be expressly set out in the [KWS Privacy Policy](#).

API and/or Web Interface means application or other programming interfaces provided to you by KWS and used to communicate with your operating system.

App means the website(s), app(s) or other online or digital properties operated by or on your behalf in connection with which you use some or all of the KWS Services.

App Data means all data and information submitted to, collected by or generated using the KWS Services while a user is accessing or using the App.

Applicable Laws means all applicable laws, statutes, regulations, enactments, decisions, rulings and government policies, and all applicable industry (including self-regulatory) regulations and rules, regulations, codes of practice, guidelines and decisions of any relevant regulator or authority in the relevant territories.

Authorised Users means your employees and contractors.

CCPA means the California Consumer Privacy Act of 2018 California Civil Code § 1798.100 et seq. its implementing regulations and any amending legislation including the California Privacy Rights Act (**CPRA**).

Content means any information, data, and other content uploaded or made available to KWS by you or on your behalf or in connection with your use of the KWS Services, including all App Data.

COPPA means the Children's Online Privacy Protection Act of 1998 15 U.S.C., the Children's Online Privacy Protection Rule and any other implementing regulations made by the Federal Trade Commission from time to time in force.

Data Processing Addendum means the addendum located [here](#).

Data Protection Laws means any Applicable Laws, industry standards, or third-party terms relating to data protection, privacy, security, direct marketing and/or confidentiality, including, as applicable (a) US federal or state laws (including, without limitation, COPPA and the CCPA); (b) the UK Data Protection Act 2018; (c) Privacy

and Electronic Communications (EC Directive) Regulations 2003; (d) the GDPR; and (e) European Member State laws implementing the e-Privacy Directive 2002/58/EC.

Developer Portal means the online control panel made available by Epic Games to you and your Authorised Users for the purposes of accessing the configuration and management portal of the KWS Platform.

Feedback has the meaning given to it in clause 5.4.

GDPR means the General Data Protection Regulation of the European Union (Regulation (EU) 2016/679) (**EU GDPR**) and, as applicable, the GDPR as amended and incorporated into United Kingdom law pursuant to the UK Data Protection Act 2018 (**UK GDPR**).

Intellectual Property Rights means all intellectual and industrial property rights anywhere in the world, including any patent, copyright, trade marks, trade names, design rights, database rights, sui generis database rights, rights in computer software, rights in confidential information, know-how and trade secrets (whether registered or unregistered) and including all applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection.

KWS Data means the Account Data, AgeGraph Data and any other personal data identified in the KWS Service Specific Terms as KWS Data or which we process other than in our capacity as a processor or Service Provider.

KWS Materials means the KWS Platform, the Developer Portal, the API and Web Interface, the KWS Trade Marks and any and all other materials and information provided by KWS in connection with the KWS Services or pursuant to the KWS Developer Terms.

KWS Platform means the technology platform known as 'Kids Web Services' that KWS owns, develops and makes available via the Developer Portal, API and/or Web Interface or otherwise.

KWS Preview Terms means any terms of use applicable to the use of the Preview Services.

KWS Services means the services and products you activate or sign-up for through your Account or, where applicable, identified in the Order Form, and any other services and products made available and designated by KWS as KWS Services from time to time.

KWS Trade Marks means any trade marks, service marks, trade names, or logos of KWS or its Affiliates.

Liabilities means claims, liabilities, demands, damages, judgments, awards, losses, costs, expenses, or fees (including reasonable attorneys' fees).

Order Form means a KWS order form signed by you and us.

personal data means (as the context requires) "personal data", "personal information" or "personally identifiable information" as defined under applicable Data Protection Laws.

In addition, **data subject**, **controller**, **process**, and **processor** have the meaning given to them in the applicable GDPR. The terms **Business**, **Business Purpose**, **Commercial Purpose**, **Sell**, **Service Provider** and **Share** have the meaning given to them in the CCPA.

